

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

-----X  
ANTWON FISHER-WILLIAMS,

Plaintiff,

-against-

**SUMMONS**

Basis of Venue:  
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER JASON  
SIMMONS (Shield # 25634), NYPD OFFICERS JOHN and  
JANE DOE #'s 1-12 (names and numbers unknown at this time),  
and Other Unidentified members of the New York City Police  
Department ("NYPD"),

Defendants.

Plaintiff Designates  
Bronx County  
as the venue for trial

-----X  
**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
October 12, 2024

Respectfully submitted,

/s/ Rachelle Kredentser

Rachelle Kredentser, Esq.  
Brownstein Legal, P.C.  
40 Exchange Place  
Suite 1000  
New York, New York 10005  
917-997-8880  
rsk@brownsteinlegal.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007  
NYPD OFFICER JASON SIMMONS, (Shield # 25634)

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

-----X

ANTWON FISHER-WILLIAMS,

Plaintiff,

**COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICER JASON  
SIMMONS (Shield # 25634), NYPD OFFICERS JOHN and  
JANE DOE #'s 1-12 (names and numbers unknown at this time),  
and Other Unidentified members of the New York City Police  
Department ("NYPD"),

Defendants.

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Plaintiff **ANTWON FISHER-WILLIAMS**, hereinafter "Plaintiff," by his attorney, RACHELLE

KREDENTSER, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

**I. PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and

custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

## **II. PARTIES**

2. Antwon Fisher-Williams, hereinafter "Plaintiff," is a resident of Bronx County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department ("NYPD").
4. Defendant NYPD Officer Jason Simmons, assigned Shield # 25634, is employed by Defendant NYPD, and was at all times relevant herein an officer, employee, and agent of the NYPD.
5. Defendant Simmons is being sued in his individual and official capacity.
6. Defendant John and Jane Doe #'s 1-12 are and were at all times relevant herein officers, employees, and agents of the NYPD. Defendant officers John and Jane Doe #'s 1-12 are being sued in his/her individual and official capacities.
7. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for, and on behalf of, the NYPD at all times relevant herein, with the power and authority vested in

them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. In furtherance of his State causes of action, Plaintiff filed a timely Notice of Claim upon Defendant City of New York in compliance with Municipal Law Section 50.
9. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and Defendant City of New York has failed to pay or adjust the claim.
10. Defendant City of New York held a 50(h) hearing examination of Plaintiff on December 21, 2023.
11. Plaintiff demands a trial by jury.

### **III. STATEMENT OF FACTS**

12. On July 20, 2023, approximately 13 Defendant NYPD officers, including Defendant Simmons, arrived outside of Plaintiff's home in the Bronx.
13. Said Defendant officers were responding to Plaintiff's 911 call that night.
14. Plaintiff reported to 911 that his cousin, James Tucker, was attacking him.
15. A few days prior to July 20, 2023, Plaintiff made a police report that Mr. James Tucker spray painted and defaced Plaintiff's automobile.
16. On approximately July 8, 2023, Plaintiff reported to the Human Resources Administration that Plaintiff's benefits card was stolen.
17. Mr. Tucker stole the card information and used the balance on the card without Plaintiff's knowledge or permission.
18. On July 20, 2023, at approximately 9PM, Mr. Tucker sent threatening text messages to Plaintiff.

19. On July 20, 2023, at about 11PM, Mr. Tucker assaulted Plaintiff while Plaintiff was outside of his home.
20. Mr. Tucker ran toward and lunged at Plaintiff as Plaintiff backed away from Mr. Tucker in the street.
21. Mr. Tucker repeatedly threatened to kill Plaintiff while Mr. Tucker attacked Plaintiff.
22. In attempting to escape Mr. Tucker's assault, Plaintiff fell backwards over and onto the curb.
23. Mr. Tucker jumped onto Plaintiff and struck Plaintiff repeatedly.
24. Mr. Tucker continued to threaten Plaintiff as Mr. Tucker attacked Plaintiff.
25. Plaintiff escaped from underneath Mr. Tucker.
26. Plaintiff immediately called the police.
27. When Defendant Simmons and/or Defendants John and Jane Does 1-12 responded to Plaintiff's 911 call, they handcuffed and arrested Plaintiff.
28. Plaintiff did not provide Defendants consent to enter Plaintiff's home.
29. Defendants did not have a warrant or probable cause to enter Plaintiff's home.
30. Defendants had no reason to enter the home.
31. Defendants had no articulable reason to enter the home.
32. Defendant NYPD Officers, including Defendants Simmons, Does, and unnamed officers, entered Plaintiff's home without consent.
33. Defendant NYPD Officers, including Defendants Simmons, Does, and unnamed officers, damaged Plaintiff's home, including by destroying Plaintiff's minor son's toys, and ripping art from the wall down.

34. Defendant NYPD Officer who was the supervisor of the Defendants failed to prevent said warrantless, unauthorized, and unprivileged entrance, search, and destruction of Plaintiff's home and property.
35. Other Defendant officers failed to intervene when Defendants officers entered the home without consent and destroyed property.
36. Plaintiff had visible injuries.
37. Plaintiff requested medical attention multiple times at the scene and at the precinct.
38. Police, including Defendant Simmons and/or Defendants John and Jane Does 1-12, denied Plaintiff's requests for medical attention.
39. Later that evening, EMTs arrived at the precinct but Defendant police officers, including Defendant Simmons, prevented EMTs from treating Plaintiff's injuries for hours.
40. Defendant officers and other officers failed to intervene when medical attention was repeatedly denied for hours.
41. After bleeding for hours, Plaintiff was taken to the hospital.
42. The hospital treated Plaintiff for, among other injuries, pain, and stitched Plaintiff's finger.
43. Plaintiff appeared before a Judge on approximately July 22, 2023.
44. Upon information and belief, unnamed and named individual Defendants knowingly withheld exculpatory information or provided false information to the District Attorney's office.
45. Such false information included allegations that Plaintiff was the aggressor.
46. Defendant Simmons was an arresting officer and authored the criminal complaint against Plaintiff.

47. Defendant Simmons and other Defendant officers knowingly or negligently wrote false information in the criminal complaint.
48. Defendant officers failed to intervene when they knew such false information was created and forwarded to the District Attorney's office.
49. Unable to afford bail, Plaintiff was remanded until July 26, 2023.
50. While held in custody on remand, Plaintiff was forced to take unnecessary medication.
51. Plaintiff was forced to take the medication in front of officers.
52. The medication dangerously lowered Plaintiff's heart rate.
53. The forced medication caused Plaintiff to consistently lose consciousness.
54. On July 26, 2023, all charges against Plaintiff were dismissed and sealed.
55. Plaintiff was then released from custody.
56. Defendants held Plaintiff in custody for approximately six days.
57. This case prolonged Plaintiff's custody battle for his child.
58. As a result of this arrest, Plaintiff was terminated from his employment, which had been the source of Plaintiff's income for the six years prior to the arrest.
59. As a result of this arrest, Plaintiff has not been hired for any other employment.
60. Since July 20, 2023, because of this arrest, Plaintiff has not worked for nor received any income from any source.
61. Because of this arrest, Plaintiff was unable to make a car payment and his car was repossessed.
62. As a result of the arrest, Plaintiff now experiences ongoing mental trauma and fear, for which he plans to seek treatment.

63. In addition to other sources of trauma from this arrest, Plaintiff witnessed an individual die while held in custody, which resulted in Plaintiff experiencing ongoing mental trauma.
64. Since his release and dismissal of the charges, Plaintiff has had follow-up medical treatment for ongoing pain and/or injuries.

#### **IV. CAUSES OF ACTION**

##### **A. STATE LAW CLAIMS**

##### **Count 1: FALSE ARREST AND FALSE IMPRISONMENT**

65. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 as if fully set forth herein.
66. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendant NYPD Officers Simmons and/or John and Jane Doe 1-12 intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
67. Individually named Defendants, as well as unnamed Defendants, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department ("NYPD), which are therefore responsible for their conduct.
68. Defendant City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.



**Count 2: MALICIOUS PROSECUTION**

69. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth at length herein.
70. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
71. Individual Defendants commenced and continued a criminal proceeding against Plaintiff.
72. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted, namely, that Plaintiff had assaulted an officer or resisted arrest.
73. Absence of probable cause is itself malice.
74. The prosecution and criminal proceedings terminated favorably for Plaintiff on July 26, 2023.
75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
76. The individual Defendants John and Jane Does 1-12 and Defendant Simmons, were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

**Count 3: NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

77. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth at length herein.

78. Defendant City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.
79. Such negligent training included but is not limited to failure to adequately train officers responding to victims of crimes and conduct investigations where there is a victim. Such negligent supervision includes but is not limited to failing to supervise such interactions with victims of crimes.

**Count 4: FAILURE TO INTERVENE**

80. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth at length herein.
81. Defendants Simmons and John and Jane Does 1-12 had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
82. Defendants Simmons and/or John and Jane Does 1-12 failed to intervene to prevent the unlawful conduct described herein, including but not limited to unlawful search, seizure, and arrest, despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
83. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.

84. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, the New York City Police Department, which are therefore responsible for their conduct.
85. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**Count 5: NEGLIGENCE**

86. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth at length herein.
87. Defendants owed a duty of care to Plaintiff.
88. Defendants Simmons and John and Jane Does 1-12 breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
89. Further, the Defendants knowingly or negligently denied medical care while Plaintiff was plainly visibly injured.
90. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
91. All of the foregoing occurred without any fault by Plaintiff.
92. Defendant City, as the employer of the Defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**Count 6: INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

93. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth at length herein.
94. By the actions described herein, the individually named and unnamed Defendant officers, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
95. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
96. Defendant City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**Count 7: ASSAULT**

97. New York provides a tort claim against government employees for assault.
98. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 2 through 64 with the same force and effect as if more fully set forth herein.
99. Individual Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact when they detained, arrested, and held Plaintiff, and intentionally did a violent and/or menacing act which

threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff.

100. Individual Defendants Simmons and/or John and Jane Does 1-12, menaced such offensive contact including, but not limited to, when Defendant officers handcuffed Plaintiff.
101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which are therefore responsible for their conduct.
102. Defendant City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**Count 8: BATTERY**

103. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth herein.
104. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. This act was committed without justification, and was committed by Defendant Officers Simmons and/or John/Jane Does.
105. Such acts included, but are not limited to, such Defendant officers handcuffing Plaintiff
106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of *respondeat superior*.

**Count 9: TRESPASS**

108. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth herein.
109. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally entered Plaintiff's property.
110. Defendants entered without justification nor permission.
111. Defendants did not have consent, privilege, a warrant, nor exigent circumstances to do enter Plaintiff's property.
112. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally damaged the interior of Plaintiff's home, including the property inside of the home.
113. Such property included children's toys and art.
114. Defendant NYPD officers acted wantonly, maliciously, or with reckless disregard for Plaintiff's rights.

**Count 10: TRESPASS TO CHATTELS**

115. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 2 through 64 with the same force and effect as if more fully set forth herein.
116. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally destroyed, broke, or damaged Plaintiff's property, including children's toys and art.
117. This destruction deprived Plaintiff of enjoyment of said property and possession of said property.
118. Such destruction resulted in, among other harms, broken toys, and ripped artwork.

**B. FEDERAL CLAIMS**

119. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
120. All of the aforementioned acts of Defendant Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, their agents, servants, and employees, were carried out under the color of state law.
121. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
122. The acts complained of were carried out by the Defendants in their capacities as NYPD police officers with all the actual and/or apparent authority attendant thereto.
123. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
124. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**Count 11: VIOLATION OF FOURTH AMENDMENT FALSE ARREST UNDER 42 U.S.C. § 1983**

125. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

126. As a result of the aforesaid conduct by Defendant Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, Plaintiff was subjected to an illegal, improper, and false arrest by such Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
127. Defendants did not have probable cause to arrest Plaintiff.
128. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**Count 12: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH UNDER 42  
U.S.C. § 1983**

129. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
130. Plaintiff was searched by individual Defendants, including and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, without an individualized reasonable suspicion that Plaintiff had committed any crime.
131. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, exigent circumstances, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
132. Specifically, individual Defendants searched Plaintiff without permission or authority.
133. Plaintiff's home was improperly searched without consent, a valid warrant, probable cause, exigent circumstances, and a specific articulable factual basis supporting a reasonable suspicion



and/or probable cause as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

134. Defendants, including Defendant Simmons and/or Does and/or unnamed officers, permanently damaged and destroyed property in Plaintiff's home.
135. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**Count 13: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

136. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
137. Defendants Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants created and/or knowingly forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff attempted to murder Mr. Tucker. Mr. Tucker had a documented history of threatening Plaintiff, defacing Plaintiff's property, attacked Plaintiff in front of Plaintiff's own home. Plaintiff suffered injuries from this attack and called 911 to report this crime.
138. Defendants Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants misled the prosecutors by creating false evidence or statements, including the criminal complaint, against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
139. In knowingly forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendants Simmons, Does 1-12, and unnamed Defendant

officers violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

140. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**Count 14: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

141. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
142. Defendants Simmons, unnamed officers, and/or John and Jane Does 1-12 used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
143. Defendant NYPD officers Simmons, unnamed officers, and/or John and Jane Does 1-12 committed the intentional torts of assault and battery against Plaintiff by unlawfully arresting Plaintiff and by excessively tightly handcuffing Plaintiff.
144. In so doing, the conduct of Individual NYPD Defendant officers went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
145. At the time of the acts of force, Plaintiff was complying with Defendants and did not act in a manner that would any way justify the use of physical force.
146. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries.

**Count 15: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

147. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
148. Defendants Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
149. Defendant Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendant officers further violated Plaintiff's constitutional rights when they failed to intervene and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
150. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**Count 16: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

151. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

152. Defendant Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants misrepresented and/or falsified evidence before the Bronx County District Attorney, including false allegations that Plaintiff was the aggressor.
153. Defendant officers Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, did not make a complete and full statement of facts to the District Attorney.
154. Defendants Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants withheld exculpatory evidence from the District Attorney.
155. Defendants Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.
156. Defendant officers, including but not limited to Defendant Simmons, and lacked probable cause to initiate criminal proceedings against plaintiff.
157. Defendant Simmons and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, acted with malice in initiating criminal proceedings against plaintiff.
158. Defendant Simmons, and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.
159. Such Defendant officers lacked probable cause to continue criminal proceedings against plaintiff.
160. Defendant Simmons, and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants acted with malice in continuing criminal proceedings against plaintiff.
161. Defendant Simmons and/or other Defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceedings.

162. Specifically, Defendants Simmons, and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants officers made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
163. Notwithstanding the perjurious and fraudulent conduct of Defendants Simmons, and/or Defendant John/Jane Does 1-12, and /or unnamed Defendants, the criminal proceedings were terminated in Plaintiff's favor on July 26, 2023.
164. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**Count 17: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

165. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
166. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
167. The aforementioned customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
  - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. Utilizing excessive force when there is no probable cause for arrest;
- D. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- E. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and,
- F. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause; and,
- G. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, one of the purposes of which being for the purpose of obtaining overtime compensation; and
- H. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 168. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
- 169. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

170. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
171. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
172. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
173. The acts complained of deprived the Plaintiff of their right:
- I. Not to be deprived of liberty without due process of law;
  - J. To be free from seizure and arrest not based upon probable cause;
  - K. Not to have summary punishment imposed upon them.

**WHEREFORE, ANTWON FISHER-WILLIAMS**, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law. Specifically, Plaintiff requests the Court

- A. declare that Defendants violated Plaintiffs rights under the Fourth, Fifth, Sixth and Fourteenth Amendments;
- B. award compensatory and punitive damages for the violation of their constitutional rights;
- C. award punitive and compensatory damages for tortious claims;
- D. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and

E. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York  
October 12, 2024

Respectfully submitted:  
By: s/ *Rachelle Kredentser*  
Rachelle Kredentser, Esq.  
Brownstein Legal, P.C.  
40 Exchange Place  
Suite 1000  
New York, New York 10005  
(917) 997-8880  
rsk@brownsteinlegal.com

TO:  
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007  
NYPD OFFICER JASON SIMMONS, (Shield # 25634)



**ATTORNEY'S VERIFICATION**

I, **RACHELLE KREDENTSER**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York  
October 12, 2024

/s/ *Rachelle Kredentser*

Rachelle Kredentser, Esq.  
Brownstein Legal, P.C.  
40 Exchange Place  
Suite 1000  
New York, New York 10005  
(917) 997-8880  
rsk@brownsteinlegal.com